

STATE OF NEW YORK

3578--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 28, 2025

Introduced by M. of A. MITAYNES, GONZALEZ-ROJAS, ANDERSON, ROZIC, CRUZ, FORREST, LUCAS, SHRESTHA, EICHENSTEIN, REYES, SIMON, BORES, DE LOS SANTOS, SEAWRIGHT, BURDICK, KIM, COLTON, TAPIA, LUPARDO, NOVAKHOV, YEGER, RAGA, SIMONE, LUNSFORD, O'PHARROW, LEVENBERG -- read once and referred to the Committee on Social Services -- recommitted to the Committee on Social Services in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the social services law and the state finance law, in relation to establishing a SNAP and cash assistance fraud victims compensation fund

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The social services law is amended by adding a new section
2 95-b to read as follows:

3 § 95-b. SNAP and cash assistance fraud victims compensation program.
4 1. The office of temporary and disability assistance shall establish and
5 maintain a SNAP and cash assistance fraud victims compensation program
6 to compensate persons who receive benefits from the supplemental nutri-
7 tion assistance program (SNAP) or cash assistance program who have had
8 such benefits stolen or who have been defrauded of such benefits.

9 2. The SNAP and cash assistance fraud victims compensation program
10 shall have an application process which shall be provided in English and
11 languages other than English, including but not limited to the ten most
12 commonly spoken languages, aside from English, in the state.

13 3. The inspector general and the attorney general shall work with the
14 commissioner of temporary and disability assistance to determine whether
15 a person who receives benefits under the SNAP or cash assistance program
16 was defrauded of such benefits or if such benefits were otherwise
17 stolen.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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§ 2. The state finance law is amended by adding a new section 99-uu to read as follows:

§ 99-uu. SNAP and cash assistance fraud victims compensation fund. 1. There is hereby established in the joint custody of the state comptroller and the commissioner of the office of temporary and disability assistance a fund to be known as the SNAP and cash assistance fraud victims compensation fund, hereinafter referred to as the "fund".

2. Money allocated to the fund shall be kept separate and shall not be commingled with any other funds in the custody of the state comptroller.

3. The fund shall consist of all moneys appropriated for the purpose of such account, moneys transferred to such account pursuant to law, monies received from civil penalties regarding the supplemental nutrition assistance program, contributions consisting of promises or grants of any money or property of any kind or value, or any other thing of value, including grants or other financial assistance from any agency of government and moneys required by the provisions of this section or any other law to be paid into or credited to this account.

4. Money expended from such fund shall be used consistent with the SNAP and cash assistance fraud victims compensation program as established under section ninety-five-b of the social services law.

§ 3. This act shall take effect immediately.